Food Safety and Standards Authority of India (FSSAI)

Pranshu

Introduction

- FSSAI or Food Safety and Standards Authority in India is an autonomous body under the Ministry of Health & Family Welfare, Government of India.
- The government entity was established in the year 2006 with a motive to offer licenses and regulate food safety and hygiene standards among food business operators across the country.
- If you are into the food business, FSSAI registration and getting an FSSAI license is mandatory for you.

Introduction

- The Food Safety and Standards Act, 2006 (Act No. 34 of 2006) received the assent of the President of India on 23rd August 2006 and thereafter published in the Gazette of India (Extraordinary) Part I, Section 1 dated 24th August, 2006.
- Various provisions of the Act came with force on various dates through several notifications in this regard viz. notifications dated 15.10.2007, 28.05.2008, 18.11.2008, 09.03.2009, 31.07.2009, 29.07.2010 and 18.08.2010.
- Vide Cabinet Secretariat's notification under Govt. of India (Allocation of Business) Rules, 1961 dated 17.09.2007, the subject "Food Safety and Standards Act, 2006" was shifted to the Ministry of Health & Family Welfare from the Ministry of Food Processing Industries.
- The Ministry of Health and Family Welfare vide 'The Food Safety and Standards (Removal of Difficulties) Order, 2007 dated 15th October, 2007 in Sub-Section(I), in clause (c) of Section 6 of The Food Safety and Standards Act, 2006 for the word 'Health', the words "Food Processing Industries 'were substituted.

Functions of FSSAI

- **Setting Rules and Guidelines –** FSSAI sets up rules and guidelines which need to be followed by all food manufacturing companies, keeping into consideration hygiene and food safety
- **Granting License –** To pursue any food related business, the owner needs to get a certificate and license with the permission of FSSAI
- **Test the Standard of Food –** the standard and quality of food manufactured by all companies registered under FSSAI, is done by the organisation themselves
- **Regular Audits –** Proper inspection is done for food-producing and manufacturing companies to ensure the standards are at par with the guidelines
- **Spreading Food Safety Awareness –** It is the responsibility of FSSAI to spread awareness and inform the citizens about the importance of safe and hygienic food consumption
- **Maintain Records and Data –** FSSAI also has the responsibility to maintain proper records and data of all the registered organisations. Any violation of rules prescribed by FSSAI can lead to the termination of the license
- **Keeping the Government Updated –** Any food safety-related threat must be informed to the Government authorities for further action. Also, assist them in framing food standard policies

What is the Structure of FSSAI?

- The FSSAI comprises of a Chairperson and twenty two members out of which one – third are to be women.
- The Chairperson of FSSAI is appointed by the Central Government.
- The Food Authority is assisted by Scientific Committees and Panels in setting standards and the Central Advisory Committee in coordinating with enforcement agencies.
- The primary responsibility for enforcement is largely with the State Food Safety Commissioners.

What is FSSAI Registration?

- FSSAI registration is necessary for all the business operators involved in the food business. No matter if you are a manufacturer, trader of food packages, or restaurant business, getting the 14-digit FSSAI registration number is mandatory for you.
- In case you manufacture food products, you need to ensure that the FSSAI license number is printed on your food packages.

- **What is the significance of QR Code on FSSAI License/Registration?**
  FSSAI is dispatching License and Registration to FBOs online with QR code. On scanning, QR code shows the details of FSSAI License or Registration as available in FSSAI database. This helps in identifying any fraudulent activity.

Why It's Important to Take FSSAI Registration?

- The first and foremost thing is it is mandatory to have the FSSAI license. Apart from that, there are a few other reasons why having the FSSAI license is important. Have a look below to learn in-depth.
- Since food can directly impact consumers' health, it is always one of the most subtle subjects for business. That is the distinct reason why the Food Safety and Standard Authority India maintains strict policies related to food safety. So, whenever a food business operator (FBO) has a license, they need to abide by the regulatory policies.
- At the time of registration of the FSSAI license, government authority proceeds through a verification of the food; hence when one gets the license for the food products, the product becomes much more trustworthy to its customer base.
- The purpose of the food license is to chemically test the food produced by a particular organization so that if any adulteration made to the food does not impact the consumers' health. As we all know, the food business is already susceptible to too many allegations of adulterations. Therefore, when you have the FSSAI license, you are supposed to get free from this type of accusation.
- Having the permit can aid you in the marketing of your food product as well. Since you can directly use the FSSAI logo and license number in food packages, your brand becomes much more trustworthy about standards and quality.
- Lastly, the penalties for not having the FSSAI license while running a food business are much higher than actually the cost of getting the license. Therefore it will always be the wisest choice to have an FSSAI license when you are operating a food business in India.

Types of FSSAI License

- **FSSAI Basic Registration**: Every Petty Food Business Operator can opt for the Basic FSSAI Registration. More precisely, speaking FBO with a turnover of up to 12 lakh per annum can go for the Basic Registration. You should choose to register your business with the basic registration if you are a small-sized food product manufacturer, marketer, storage unit owner, retailer, or distributor.
- **FSSAI State License**: FBOs that are not covered under Schedule 1 of FSS Regulations, 2011, alongside have a turnover of 12 lakh rupees or more annually (up to 20 Crore Rupees) should have State License to continue their business operations. In addition to that, all-grain, cereal, and pulses milling units, no matter their turnover, should have the State FSSAI License.
- **FSSAI Central License**: Food Business operators operating in more than one state and covered under schedule 1 of FSS Regulations, 2011 need to have the Central License. Apart from that, FBOs with an annual turnover of 20 crores and more must also have the Central FSSAI License.

Who needs FSSAI basic registration?

Every food business needs to be registered with FSSAI, the FSSAI registration is a basic license for all. This category covers the following food business operators (FBOs)-

- FBOs with an annual turnover of less than 12 lakhs per annum.
- Temporary stall vendors selling food also need FSSAI registration.
- Any person who manufactures or sells food by himself/ herself.
- People who distribute food in a social gathering or religious conventions except for caterers.
- Small retailers dealing in food products need FSSAI registration.
- Cottage industries who function as FBOs

Who is exempted from FSSAI registration?

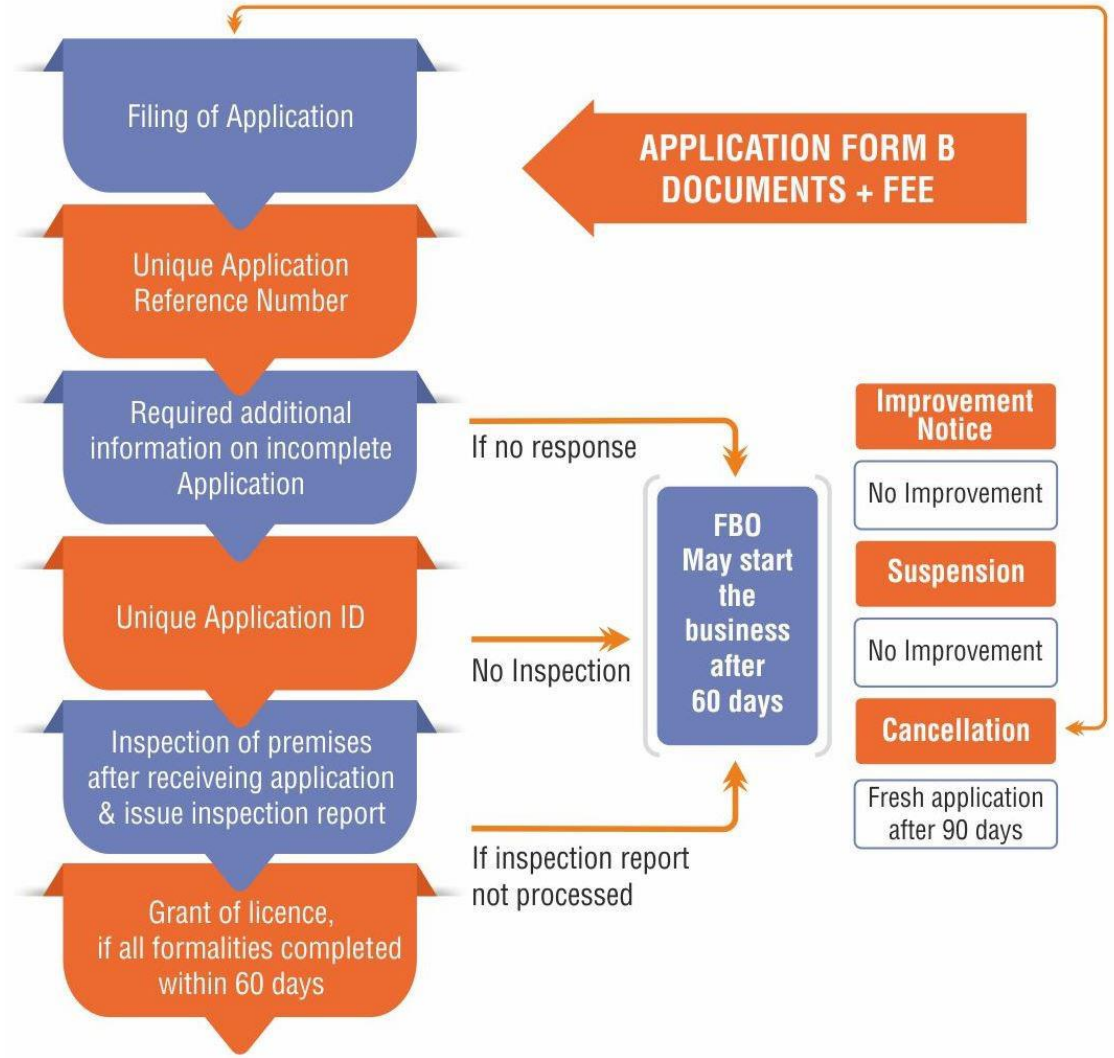
The following food business operators are exempted from obtaining Registration/ Incense from the Food Safety and Standards Authority of India:

- Individual members manufacturing or conducting food business activities from home for a registered Cooperative Society or Mahila Udyog or Self Help Group or Gruh Udyog, or any similar government-registered society
- The Direct Selling entity is willing to take responsibility for its Direct Sellers and has given them written authorization to do so
- A milkman/vendor registers with a Cooperative Society and sells his whole milk production to that society.
- The delivery person, direct selling agent, or owner of food vending machines, water vending machines, food ATMs, or food carts

List of food businesses falling under the purview of Central Licensing Authority (schedule 1 of FSS Regulations, 2011)

- Dairy units along with milk chilling units can handle the processing of more than 50,000 liters of liquid milk per day or 2500 metric tons of solid milk annually.
- Vegetable oil-producing or processing units that process vegetable oil through the solvent extraction process and refineries having a capacity of more than 2 metric tons per day.
- Slaughterhouses that are equipped to slaughter more than 50 large animals or a minimum of 150 small animals are also covered under Schedule 1 of FSSAI Regulations, 2011.
- Meat processing units can process more than 500 kg of meat per day or 150 metric tons of meat per annum.
- Except for the units mentioned in I and IV, all other food processing units having types of machinery such as relabelled and repackers with a capacity of 2 metric tons per day except grains, cereals, and pulses milling units.
- Businesses that import food items or food ingredients and additives for commercial uses.
- Food business operators who manufacture food items, ingredients, or substances or use certain processing technologies to process or both whose safety is not established by these regulations or don't have a history of safe use or introduced in the country are also covered under schedule 1.

Processing of Application for license



Processing of Application for license

- (1) A license shall, subject to the provisions of these Regulations, be issued by the concerned Licensing Authority within a period of 60 days from the date of issue of an application ID number as provided in subsection.
- (2) If, upon scrutiny of the application within 15 days from the date of receipt of the application, the concerned Licensing Authority requires any additional information with respect to an application or if the application is incomplete, the Licensing Authority shall inform the applicant in writing, to furnish such additional information or complete the application, as the case may be, within 30 days from such notice. In case the applicant fails to furnish the required information within the stipulated time of 30 days, the application for license shall stand rejected
- (3) On the receipt of a complete application including the additional information if asked for, the Licensing Authority shall issue an Application ID number to each applicant that will be referred to in all future correspondence between the Licensing Authority and the applicant.

- (4) After the issue of Application ID number the Licensing Authority may direct the Food Safety Officer or any other person or agency specially designated for such functions to inspect the premises in the manner prescribed by the Food Safety and Standard Authority of India in accordance with these Regulations. Such Inspecting Officer or person may issue a notice to the applicant, if it deems fit, guiding food business operator on necessary steps to be taken or changes or alteration to be made in the premises in order to ensure general sanitary and hygienic conditions as specified in Schedule 4. The applicant shall carry out the required steps, changes or alterations and intimate the Licensing Authority within 30 days or such period as may be allowed by the Licensing Authority.
- (5) Within a period of 30 days from receipt of an inspection report excluding the time taken by the applicant in complying with the advice, if any, given in the inspection report and verification thereof, the concerned Licensing Authority shall consider the application and may either grant license or reject the application. Provided that before refusing license an applicant shall be given an opportunity of being heard and the reasons for refusal shall be recorded in writing.
- (6) The Licensing Authority shall issue a License in Format C under Schedule 2 of these Regulations, a true copy of which shall be displayed at a prominent place at all times within the premises where the Food Business Operator carries on the food business.

Important Initiatives by FSSAI

- **Eat Right India –** The aim is not just to provide food to one and all, but to provide quality food to everyone. With this initiative, FSSAI intends to make good quality food accessible to every citizen of the country
- **Clean Street Food –** This involves training the street food vendors and making them aware of the violations as per the FSS Act 2006. This will also help in the social and economic upliftment of street food vendors
- **Diet4Life –** This is another initiative taken by FSSAI, to spread awareness about metabolic disorders.
- **Save Food, Share Food, Share Joy –** Encouraging people to avoid food wastage and promote food donation. Through this, FSSAI intends to connect food-collecting agencies with the food-producing companies and share the food with the ones in need

Apart from this, the first-ever World Food Safety Day was celebrated on June 7, 2019, by FSSAI, acknowledging the contribution of states, food businesses, and individuals in maintaining food safety.

FSSAI Compliance Rules

The Food Safety and Standards Rules, 2011, supplement the FSS Act. These rules provide for the qualification and duties of the Commissioner of Food Safety, designated officers, food safety officers and food analysts. It also states the procedure to take extracts of documents, seize food articles by the food safety officer, and sample and analyse food articles. It provides the procedure of adjudication and appeals to the appellate tribunal constituted under the FSS Act.

Various regulations regulate various matters relating to FBOs and the food business. Some of the important regulations are provided below:

- Food Safety and Standards (Licensing and Registration of Food Businesses) Regulation, 2011.
- Food Safety and Standards (Food Products Standards and Food Additives) Regulation, 2011.
- Food Safety and Standards (Prohibition and Restriction of Sales) Regulation, 2011.
- Food Safety and Standards (Laboratory and Sampling Analysis) Regulation, 2011.
- Food Safety and Standards (Health Supplements, Nutraceuticals, Food for Special Dietary Use, Food for Special Medical Purpose, Functional Food and Novel Food) Regulations, 2016.
- Food Safety and Standards (Import) Regulation, 2017.
- Food Safety and Standards (Packaging) Regulation, 2018.
- Food Safety and Standards (Labelling and Display) Regulations, 2020.

➨ FSSAI license is a significant license that every person or entity involved in the food business must have. The FSSAI is the authority that regulates the safety, standards and hygiene of the food industry in India. The FSSAI authorities may impose a penalty or ask to close the food business when it does not have an FSSAI license or comply with FSS rules and regulations.

What are the key checkpoints for obtaining FSSAI Food Compliance?

There are several checkpoints which need to be considered while obtaining Food Compliance such as:

- The ingredients and additives must be used as per FSSAI standards with respect to their category, quality/purity and quantity.
- Food product labelling must clearly mention the veg and non-veg logo
- The product description and name should have been appropriately mentioned.
- The complete nutritional value of the product must be correctly mentioned as per the format included in the labelling norms.
- The food product must clearly show the FSSAI Logo with the FSSAI address and license number.
- The logo should mention all the declarations and warnings for the supplements in bold.
- It should show the price (MRP), batch number and dates of manufacture and expiration.
- All microbial parameters, heavy metals, insecticides, pesticides, naturally occurring toxins and contaminants should be within the specified limits only.

References

FOOD SAFETY AND STANDARDS AUTHORITY OF INDIA

Ministry of Health and Family Welfare, Government of India

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CA. Sachin Jindal

V J M & ASSOCIATES LLP
Chartered Accountants



Registration

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